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December 10, 2019

City of Walnut Creek Planning Department
Attn: Mr. Alan Carreon
1666 N Main Street, 2nd Floor
Walnut Creek, CA 94596

SENT VIA EMAIL TO CARREON@WALNUT-CREEK.ORG

RE: Pre-Application Review Application No. Y19-124
1424-1426 S Main Street, Walnut Creek CA
Adib's Persian Rug

Dear City of Walnut Creek Planning Department,

I hope you are well. Thank you for your letter dated November 22, 2019. I am writing regarding the proposed 2 story project at 1424-1426 S Main Street, Walnut Creek California ("**Project**"). The Project is currently occupied by Adib's Persian Rug owned by Ray Adib. Our business was founded and has grown in Walnut Creek since 1974.

As discussed with Planning Staff, the purpose of our Pre-Application submission was to request Planning Commission and DRC feedback/reaction to the location, residential addition, and concept of our proposed project.

Many of the comments on the letter dated November 22, 2019, while valuable to the project, exceed the current conceptual request.

Please find responses to your inquiries:

1. PLANNING

1.1. General Plan 2025, Figure 11, requires a building setback of 20 to 30 feet (25 feet average) along South Main Street. This issue was previously provided as a requirement on the comments listed in Application No. PRT19-014. The application package did not contain a narrative citing such a request for an amendment to the General Plan. Provide a discussion, illustration, and reasoning for the request.

1.1. General Plan 2025, Figure 11, requires a building setback of 20 to 30 feet (25 feet average) along South Main Street. This issue was previously provided as a requirement on the comments listed in Application No. PRT19-014. The application package did not contain a narrative citing such a request for an amendment to the General Plan. Provide a discussion, illustration, and reasoning for the request.

1.2. The property is subject to Specific Plan No. 7 (Newell Avenue Specific Plan). The applicable specific plan conditionally allows residential uses.

1.2. We requested setback relief during our in-person meeting with Planning Staff. As discussed, each and every building except one on the East side of S Main Street have relief from setback (1530 S Main Street, 1516 S Main Street, 1488 S Main Street (newly rebuilt), 1432 S Main Street, and 1495 Newell Ave). We are requesting to maximize S Main Street store frontage consistent with the adjacent properties. However, pursuant to your feedback, we are submitting a revised plan with increased building set-back.

1.3. The building height limit is 35 feet on this property. Small projections above this height limit may be allowed to provide building skyline interest. Such an exception would be considered by the Design Review Commission.

1.3. No response requested from Walnut Creek Planning Staff. Building height is below 35 feet.

1.4. Provide renderings which depict the proposed addition's integration with the existing building. As submitted, the addition appears as a stand-alone building.

1.4. The integration rendering exceeds current requested feedback scope and will be provided once the location and concept are approved. The additional will be connected with a seismic joint to the existing structure.

1.5. Provide all existing and proposed building elevations.

1.5. The building elevations are enclosed with this letter.

1.6. The proposed building design is unremarkable. Provide a narrative discussing the proposed architecture, its integration with the existing building, and its compatibility with the surrounding environment.

1.6. The building architecture is intended to be consistent with other approved city of Walnut Creek projects. Please find two examples below:





1.7. Residential balconies (personal outdoor space) should be at least five feet deep to be considered "usable".

1.7. Balconies will be updated once the building concept and location are approved.

1.8. Review the attached Multi-Family Residential Objective Design Standards (2018Addendum to the Design Review Guidelines). Demonstrate how the proposed project is consistent with each standard or guideline.

1.8. Multi-Family Residential Objective Design Standards

Bike Parking

Except in the case of individual locking bicycle lockers and attended bicycle parking, all bicycle parking spaces shall provide a means of securing the bicycle frame and at least one wheel to a securely anchored rack.

1.8.1. Bicycle Parking spaces shall be provided with means of securing the bicycle frame and one wheel to an anchored rack.

Where bicycle parking is not visible from the street, directional signage shall be included at the main building entrance.

1.8.2. Directional signage shall be included at the main building entrance to the bicycle parking.

Vehicular Parking

Controlled entrances to parking facilities (gates, doors, etc.) shall be located a minimum of 18 feet from the back of sidewalk, in order to accommodate one vehicle entering the facility.

1.8.3. Not Applicable.

Except for garage entrances, structured parking shall not be visible from the street, or any adjacent public park, publicly accessible outdoor space or designated open space area. The public -facing elevations of parking structures shall be lined with residential uses on all levels (commercial may be used on the ground floor when allowed by zoning).

1.8.4. Not Applicable.

Structured parking shall be designed such that interior lighting shall be fully shielded and automobile headlamps shall not be visible from adjacent buildings, parcels, streets, public parks, publicly accessible outdoor space or designated open space area.

1.8.5. Not Applicable.

A portion of the required number of parking spaces shall be made available for use by guests, as follows:

- **0.10 spaces per dwelling unit for affordable projects (defined as projects reserving at least 50% or more of the units for income-restricted households, as defined under California Law).**
- **0.15 spaces per dwelling unit for all other projects**

These guest parking spaces shall be located outside of any security gates or other access limitation devices unless provisions are made to allow a resident to remotely communicate with and provide access to the visiting guest (such as through an intercom and remote control gate, or other similar devices).

1.8.6. A guest parking stall shall be provided.

In the Core Area, no surface parking shall be located between the main building and any street.

1.8.7. Not Applicable.

Private Outdoor Space

For the purposes of this standard, private outdoor space is defined as outdoor space that is usable and accessible only to building residents and their visitors, but not to the general public.
A minimum amount of private outdoor space shall be provided for residential projects as identified in the rate expressed in the table below, and applied to the development as a whole.
Private outdoor space may be provided as a combination of "personal" and "common" outdoor spaces, defined as follows:

a. **"Common" outdoor space shall be provided with shared access for all building tenants. These include:**
    - **Courtyards**
    - **Gardens**
    - **Play areas**
    - **Outdoor dining areas**

- **Recreation amenities**
- **Rooftop amenities**

b. "Personal" outdoor space shall be provided with direct access from the dwelling unit which it serves. These include:

- **Balconies**
- **Private gardens**
- **Private yards**
- **Terraces**
- **Decks**
- **Porches**

1.8.8. Balconies are intended to provide Personal Outdoor Space.

Unless located on the rooftop, common outdoor spaces shall be designed to be visible from inside the building, such as windows located at building entrances and/or dwelling unit windows.

1.8.9. Not Applicable.

For each common outdoor space provided, a minimum 15-foot dimension is required in at least one direction, with a minimum dimension of at least 10 feet in all other directions.

1.8.10. Balconies are intended to provide Personal Outdoor Space.

Up to 15% of the common outdoor space may be landscaped using required stormwater treatment planters that are contiguous with the common outdoor space.

1.8.11. Not Applicable.

For each personal outdoor space provided, a minimum dimension of five feet is required in any one direction.

1.8.12. Balconies are intended to provide Personal Outdoor Space.

Landscape Design. Required stormwater treatment facilities can be located in publicly accessible outdoor spaces, but shall not be located in private outdoor spaces (common or personal), public rights-of-way, or public access easements. Exceptions include:

- **permeable paving (as defined by applicable stormwater management standards), which can be used in private (common or personal) outdoor space**

- **landscaped required stormwater treatment planters, which may occupy up to 15% of the common outdoor space.**

1.8.13. Stormwater treatment facilities will comply with requirements.

Fences and Gates. Chain link, barbed wire, and razor wire fencing is prohibited.
1.8.14. No Chain link, barbed wire, or razor wire fencing is proposed.

Building Articulation

Buildings over three stories tall shall have major massing breaks at least every 100 feet along any street frontage, adjacent public park, publicly accessible outdoor space, or designated open space, through the use of varying setbacks, building entries and recesses, courtyards or structural bays. Major breaks shall be a minimum of five feet deep and 10 feet wide, and shall extend at least two-thirds of the height of the building. Exceptions include: For buildings with upper stories (above first floor) stepped back at least five feet, the major break need only extend two-thirds of the height of the portion of the front façade that is not stepped back.

1.8.15. Not Applicable.

Buildings shall have minor massing breaks at least every 50 feet along the street frontage, through the use of varying setbacks, building entries and recesses, or structural bays. Minor breaks shall be a minimum of 18 inches deep and four feet wide and extend the full height of the building.

1.8.16. Our proposed design is consistent with the massing break requirements.

Rooflines shall be vertically articulated at least every 50 feet along the street frontage, through the use of architectural elements such as parapets, varying cornices, reveals, clerestory windows, and varying roof height and/or form.

1.8.17. Our proposed design is consistent with the roofline articulation requirements.

Residential and Mixed-Use Building Frontages

Primary building entrances and associated paths of travel shall be visible from the adjacent street.

1.8.18. Not Applicable.

Within the Core Area, any mixed-use building street frontage greater than 150 feet in length shall have multiple pedestrian entrances to access the businesses or

residences in the building. The maximum distance between building entrances along the same frontage shall be no more than 75 feet.

1.8.19. Our proposed design is consistent with the entrances requirements.

Blank walls (facades without doors, windows, landscaping treatments) shall be less than 30 feet in length along sidewalks, pedestrian walks, or publicly accessible outdoor space areas.

1.8.20. Our proposed design is consistent with the blank wall façade requirements.

Storefronts in new mixed-use developments shall contain clear openings and windows for a minimum of 60% of the total area of the first floor facades facing sidewalks, pedestrian walks, or publicly accessible outdoor space areas.

1.8.21. Our proposed design is consistent with the openings/windows requirements.

Air, Light and Privacy

Conform to the rear and side setback and courts requirements for primary living room and bedroom windows contained in the MU-R zone, section 10-2.2.2203 of the municipal code. Required private (personal and common) outdoor space and required stormwater treatment facilities may be used to satisfy this requirement.

1.8.22. [need Mr. Campos' feedback to "Conform to the rear and side setback and courts requirements for primary living room and bedroom windows contained in the MU-R zone, section 10-2.2.2203 of the municipal code. Required private (personal and common) outdoor space and required stormwater treatment facilities may be used to satisfy this requirement.]

If a dwelling unit has windows on multiple building frontages, operable windows shall be provided on at least two building frontages.

1.8.23. Operable windows will be provided consistent with requirements.

Materials

Mirrored glass is prohibited in order to minimize off-site glare and maximize transparency.

1.8.24. Mirrored glass is not proposed.

Buildings over three stories must provide a ground floor elevation that is distinctive from the upper stories by providing a material change between the first floor and upper floors along at least 75% of the building façade with frontage upon a street, adjacent public park or public open space.

1.8.25. Not applicable.

Window frames must be recessed a minimum of two inches from the surrounding wall plane.

1.8.26. Our proposed design is consistent with the openings/windows requirements.

At least two materials shall be used on any building frontage, in addition to glazing and railings. Any one material must comprise at least 20% of the building frontage, excluding windows and railings. A change in material must be offset by a minimum of six inches in depth.

1.8.27. Our proposed design is consistent with the materials requirements.

1.9. Discuss or illustrate HVAC equipment installation. Would the equipment be on the roof? Rear elevation? All mechanical equipment shall be architecturally screened from public view.

1.9. Mechanical components will be on the roof of the new or existing structure. Mechanical equipment will be architecturally screened from public view per requirements.

1.10. Discuss how the project will propose to address the resulting parking deficiency.

1.10. Enclosed please find plans for a reduced building expansion SF to []. The residential parking stalls account for 6.75 of the 35 required stalls. Residential parking stalls are generally used after retail hours. Without the residential requirement, we are only [4?] stalls short.

1.11. Clarify if the subject property has an easement to utilize the south driveway.

1.11. We are not aware of any easement of the South Driveway.

1.12. Parallel parking stalls are required to be 22 feet long. Revise.

1.12. Please find revised parking per your request.

1.13. Submit evidence to the entitlement of the off-site parking stalls (#s 20 thru 23) shown on the plans.

1.13. Please find enclosed land license use agreement for 5 parking stalls.

1.14. Demonstrate how retail patrons would enter the commercial portion of the building. As an example, it is not clear how customers would enter from Stalls 1, 2, or 3. Would they have to walk on the driveway to enter the front of the building? What about from the rear parking lot?

1.14. Retail patrons could enter though the front or rear doors. We could add additional entry doors to the retail area.

1.15. A trash enclosure accommodating both the residential and commercial uses will be required. Show where such a trash enclosure would be provided.

1.15. Trash enclosure will be added.

1.16. **Each residential unit shall have at least 200 cubic feet of enclosed, weather-proofed and lockable private storage space in addition to guest, linen, pantry and clothes closets customarily provided. Such space may be provided in any location approved by the Community Development Department, but shall not be divided into two (2) or more locations. The balcony storage space appears undersized.**

1.16. Storage will be added. Balconies have been amended.

1.17. Provide conceptual floor plans for the residential units and note the floor area for each unit.

1.17. Residential Conceptual floorplan has been added.

1.18. A small canopy on the front elevation over the residential access door should be provided.

1.18. Canopy over residential door has been provided.

1.19. Based on a net new commercial floor area of 3,216 square feet, the estimated Commercial Linkage Fee for affordable housing is $16,080 (3,216 x $5 per sq.ft.).

1.19. Thank you for the commercial floor area fees.

1.20. The current Affordable Housing Impact Fee is $18.34 per square-foot of residential living floor area (2019). The rate is adjusted annually in accordance with the California Construction Cost Index.

1.20. Thank you for the Affordable Housing Impact Fees.

1.21. Each residential unit shall be subject to a Traffic Impact Fee. Consult Traffic Engineering for an estimate.

1.21. Thank you for clarifying the Traffic Impact Fee.

1.22. This project is subject to the Public Art Ordinance (Ord. 2154, eff. 7/8/2016). This size project must provide art with a value equal to at least one percent of the construction cost or pay a fee in-lieu of providing the art on-site. When the value of the public art would be $50,000 or less, it is encouraged, but not required, that a payment be made to the public art fund. Until July 1, 2021, a person choosing to make a payment to the public art fund instead of providing public art will be allowed to deduct 25 percent from the cost of the public art required under Section 10-10.104. Please contact Steve Huss, the Public Art Manager, at (925)943-5899 x2158 to discuss the process.

1.22. Thank you for clarifying the Public Art Ordinance.

2. ENGINEERING

2.1. Provide an ALTA survey and title report to confirm the property line boundaries and easements. Please note, certain proposed improvements cannot be approved unless easements or agreements exists or are provided as part of the Project.

2.1. ALTA Survey is provided.

2.2. The Project would require a Conditional Use Permit. As a result, the Project is subject to frontage improvements per Section 9-9.205 of the Municipal Code. The property currently has existing frontage, however the frontage shall be reconstructed to comply the City's requirements. The frontage improvements include but are not limited to the installation of a new 10 ft. wide sidewalk, driveway, utility relocation, pavement repair to the centerline of South Main Street, striping, street lights, curb and gutter. Frontage improvements shall be constructed per the latest City standards and shown on the improvement plans.

2.2. Frontage will be reconstructed to City Requirements.

2.3. Because the sidewalk must be widened to 10 feet, the proposed building addition will need to be redesigned to avoid encroaching into the public right-of-way.

2.3. Requesting clarification, the sidewalk will be 5 feet, expanded to 10 feet along our project, then go to 5 feet?

2.4. The Project shall comply with the requirements of the City Off-Street Parking Standards. The limit of the non-exclusive roadway easement at the north side of the property must provide a minimum 25 ft. from the end of parking stalls #1 thru #3, otherwise the proposed parking stalls must be relocated. In addition, the location of parking stalls #4 thru #7 cannot be approved without an access easement from the adjacent property since there is not adequate clearance for vehicles to access in and out of the parking stalls without encroaching over the property line.

2.4. We are requesting relief from this requirement as these are existing parking stalls in use, and has been for the last ~100 years.

2.5. Revise the driveway entrance to provide 10 ft. clear behind sidewalk before first parking stall.

2.5. Please find requested update enclosed.

2.6. The Project proposes a one-way entrance on the south side of the property which cannot be approved without an easement and agreement from the adjacent property owner. Please note, further traffic study and traffic coordination may be required by the Traffic Engineer Division if a one-way entrance at the south is proposed.

2.6. We are requesting relief from this requirement as this is an existing driveway, and has been for the last ~100 years.

2.7. Show all existing features on the site and off-site features within fifty (50) feet of the site boundaries, including structures, roads, trees, designated parking area/stalls (on site and off site parking), striping, underground utilities (i.e. inlets, storm drain lines, water, sewer, etc.), plant life, streambeds, or other significant natural features.

2.7. Requested features will be updated once the building concept and location are approved.

2.8. Provide dimensions between the proposed building and property lines, proposed building and easements lines, and proposed building and structures.

2.8. Please find requested update enclosed.

2.9. Show the pedestrian ADA path of travel to the proposed building, loading docks, vehicular and service points of ingress and egress. Provide dimensions for driveway widths, drive aisles and indicate direction of travel/internal vehicular circulation.

2.9. Requested ADA path of travel will be updated once the building concept and location are approved.

2.10. The Project will be subject to provision C.3 Municipal Regional Clean Water Permit. The Project proposes to create/replace more than 2,500 sf but less than 10,000 sf of impervious area (i.e. roof, pavement, concrete), as a result the development can be classified as a small project and is subject to MRP Provision C.3.i which includes an application and permit from the City. The Project would be required to install one or more of the following for the treatment of storm water runoff.

- **Direct roof runoff onto vegetated areas**
- **Direct runoff from sidewalks, walkways, and/or patios onto vegetated areas**
- **Direct runoff from driveways and/or uncovered parking lots onto vegetated areas**
- **Construct sidewalks, walkways and/or patios with permeable surfaces (i.e. pavers or pervious concrete); construction of bike lanes, driveways and uncovered parking lots with permeable surfaces.**

2.10. Requested clean water permit will be updated once the building concept and location are approved.

2.11. The Project shall submit a Storm Water Control Plan for a small land development project. Refer to attachment.

2.11. Requested Storm Water Control Plan will be provided once the building concept and location are approved.

2.12. Indicate on the plans the location of the existing trash enclosure and the access routes for garbage trucks. The existing trash enclosure will need to be resized to accommodate additional volumes and waste streams (trash, recycle, organics) generated by the building addition.

2.12. Please find requested update enclosed with Trash Enclosure location.

2.13. Show locations of proposed utility connections (i.e. sewer, water, fire service, etc.). Note, SB 7 requires water use to be sub-metered for multiunit or mixed-used residential projects and the Project shall allow sufficient space for a private sub-meter system on private property.

2.13. Please find utility connections updated.

2.14. The Project proposes an entrance to the south of the building which is enclosed by landscape. Please revise.

2.14. Please find requested update enclosed to correct landscape plan.

2.15. Provide a landscape plan.

2.15. Requested Landscape Plan will be provided once the building concept and location are approved.

2.16. A site development permit will be required for this project. All site development shall comply with Title 9 Chapter 9 (Site Development) of the Walnut Creek Municipal Code as determined by the City Engineer. The site development permit is required prior to the issuance of the building permit.

2.16. What is a site development permit?

2.17. An encroachment permit is required for all work within the public right-of-way. The encroachment permit is required prior to the issuance of the site development and building permit.

2.17. Project will request an encroachment permit, if necessary.

2.18. Demonstrate code compliant cross-slopes for all proposed accessible parking stalls and paths of travel.

2.18. Requested ADA cross-slopes will be updated once the building concept and location are approved.

3. TRAFFIC ENGINEERING

3.1. Provide an existing site plan.

3.1. Existing Site plan is enclosed per your request.

3.2. Per General Plan 2025, Policy 6.2.1, provide a minimum 10-foot wide sidewalk along frontage of property.

3.2. Please find requested update enclosed with requested 10 foot sidewalk.

3.3. Indicate where the loading occurs onsite. Show truck turn template into and off site and where it will be loading and unloading.

3.3. There is no truck loading or unloading contemplated for the retail use.

3.4. Indicate how the site will address being underparked.

3.4. Enclosed please find plans for a reduced building expansion SF to []. The residential parking stalls account for 6.75 of the 35 required stalls. Residential parking stalls are generally used after retail hours. Without the residential requirement, we are only [4?] stalls short.

3.5. Rotate Stall #8 counterclockwise so that it does not back out blindly into the drive aisle.

3.5. Please find stall 8 updated per your request.

3.6. Please show all existing parking onsite (including all adjacent neighbor parking, landscape, etc).

3.6. Please find existing site plan with parking per your request.

3.7. Provide shared parking and access agreement for adjacent sites to the north and south of project site.

3.7. Please find enclosed land license use agreement for 5 parking stalls.

3.8. Delete Stall #4 as parking stalls are not allowed within 10 feet from the back of sidewalk.

3.8. Please find updated per your request.

3.9. Driveways shall be designed to comply with City Standard CC-3.

3.9. "Driveways shall be designed to comply with City Standard CC-3".

3.10. A photometric study will be required for street/right-of-way illumination only. Study area is on Main Street up to centerline, bounded by extension of project property lines. Main Street illumination levels shall be 1.3 average horizontal foot candle (HFC) with a 4 to 1 uniformity ratio (average/minimum). If new streetlights need to be installed it is to be per City standard TS-18.

3.10. [Photometric Study?]

4. BUILDING DIVISION

4.1. The upstairs loft apartments are a covered multifamily dwelling as defined in Building Code Section 1102A Building Accessibility: An apartment building with 3 or more dwelling units.

4.1. [Elevator does not apply to 2 story structure?]

4.2. Specify type of construction, occupancy group, fire sprinklers, building area, story height and number of story.

4.2. 2 story construction. Occupancy will be retail and residential. [sprinklers required?].

5. CITY ARBORIST

5.1. No comments at this time. An arborist report may be required at a later date depending on whether work within the dripline of trees which line the creek.

5.1. No Response requested.

6. OUTSIDE AGENCIES

6.1. Any comments received will be transmitted by the respective agency under separate cover.

6.1. No Response requested.

Please contact our office at (415) 779-2342 or hadib@adiblaw.com with any questions or concerns.
Best Regards,



Hamed Adibnatanzi